

1.

CASE #	CASE NAME	HEARING NAME
CVRI2302604	ABDULLAH vs CHENG, M.D.	MOTION FOR SANCTIONS

Tentative Ruling:

DENY

Plaintiff brings this motion for an order granting issue and monetary sanctions against Defendants Jean Cheng MD and Jean Cheng MD, Inc. Plaintiff asserts that Defendants have withheld discoverable electronic medical records relevant to proving Plaintiff's medical malpractice claims. Plaintiff requests imposition of issue and monetary sanctions pursuant to CCP §§ 2023.030 (a)&(b), and 2025.480(k).

The motion is denied because the imposition of severe issue sanctions is reserved for only egregious failures by the responding party to obey to prior discovery orders or persistent and willful refusal to produce documents in response to discovery. (*Sauer v. Superior Court* (1987) 195 Cal.App.3d 213; *Kuhns v. State of California* (1992) 8 Cal.App.4th 982; *Karlsson v. Ford Motor Co.* (2006) 140 Cal.App.4th 1202.) For purposes of this motion, the requisite egregiousness or willfulness has not been shown to justify the imposition of severe sanctions. Here, the violation of the court's November 3, 2025, order, and the multiple subsequent violations of this order, resulted not from a pattern or history of abuse by Defendants, but rather from the multiplicity of discovery methods utilized by Plaintiff to address a common discovery dispute. The procedural history of this case does not show a willful violation that is preceded by a history of abuse. There are insufficient grounds to impose sanctions. Deny.

2.

CASE #	CASE NAME	HEARING NAME
RIC1901371	MIESEN vs SPENCER	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

GRANT Plaintiffs' Motion for Attorney's Fees, in the reduced, reasonable amount of \$4,200.

On March 23, 2020, the parties entered into a Settlement Agreement that fully resolved their claims. The Court retained jurisdiction under CCP § 664.6 to enforce the Agreement. On March 20, 2026, this Court denied Defendant's motion to enforce the Agreement and for attorney's fees because the Court held that Defendant had not provided sufficient evidence of breach of the Settlement Agreement. Plaintiffs now move, by way of this motion, for their attorney's fees and costs, asserting that they were the prevailing party on the Enforcement Motion and that the Settlement Agreement expressly entitles the prevailing party to recover its reasonable attorney's fees and costs.

Civil Code § 1717 provides, in pertinent part, as follows:

*(a) In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, **shall be awarded** either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract, **shall be entitled** to reasonable attorney's fees in addition to other costs. (Emphasis added.)*

The Court rules that Plaintiffs are the prevailing party on this Settlement Agreement dispute and are therefore entitled to their attorney's fees and costs. The awarding of these fees and costs is mandatory under CC § 1717.

Plaintiffs requested fees (\$8,250) under the Lodestar Method are excessive. The billed rate of \$550 per hour is excessive for the Riverside geographic area. The Court will award Plaintiffs the reduced amount of \$350 per hour for the 3 hours of work drafting the instant motion, the 8 hours drafting the opposition to the Enforcement Motion, and 1 hour for appearing at the hearing on the Enforcement Motion, for a total award of \$4,200.